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NATURE OF PROCEEDINGS: Hearing on Demurrer — with Motion to Strike

The Demurrer is sustained in part without leave to amend and overruled in part. The Motion to Strike is granted in part and denied in part.

BACKGROUND

Plaintiff Barry Rosen (Plaintiff) filed this action against Clark Drive Homeowners Association (the Association), Deborah “Deb” Bushell, and Payam Yashar (collectively, “Defendants”), alleging that Defendants failed to comply with the Davis-Stirling Common Interest Development Act (Davis-Stirling) (Civ. Code, § 4000 et seq.) and with the Association’s governing documents.

The Verified Third Amended Complaint (TAC) pleads six causes of action, each for declaratory relief: (1) concerning the declaration of covenants, conditions, and restrictions, the affordable-housing covenant, and whether the Association is an unincorporated association; (2) for involuntary reorganization; (3) for appointment of a receiver to carry out the reorganization; (4) for appointment of a receiver to implement a membership ratification of the reorganization; (5) for appointment of a receiver to ascertain the loss of equity; and (6) for reversal of all actions and contracts entered into by the Association.

Defendants filed a Demurrer and a Motion to Strike. Plaintiff filed an Opposition to each.

On April 28, 2026, the Court sustained Defendants’ demurrer to the

Verified Second Amended Complaint (SAC) without leave to amend as to three causes of action premised on involuntary dissolution, and with leave to amend as to the rest.

LEGAL STANDARD

When considering demurrers, courts construe the allegations liberally, giving “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-721.) Courts assume the truth of properly pleaded or implied factual allegations, but not deductions, contentions, or conclusions of law or fact. (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315; Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538-539.) A demurrer for uncertainty “is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Code Civ. Proc., § 430.10, subd. (f); Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

The Court may strike any irrelevant, false, or improper matter inserted in a pleading, and all or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 436, 437, subd. (a).) Irrelevant matter includes an allegation not essential to the statement of a claim, an allegation neither pertinent to nor supported by an otherwise sufficient claim, and a demand for judgment requesting relief the allegations do not support. (Code Civ. Proc., § 431.10, subds. (b), (c).)

MOTION TO STRIKE

I. Meet and Confer

Plaintiff asks the Court to overrule or defer the Demurrer and to deny or defer the Motion to Strike because Defendants did not adequately meet and confer. (Opp. to Dem., at pp. 1, 13; Opp. to Mot. to Strike, at pp. 1, 3.) An insufficient meet and confer “shall not be grounds to overrule or sustain a demurrer” or “to grant or deny the motion to strike.” (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).) Here, on June 9, 2026, defense counsel wrote to Plaintiff’s counsel identifying each portion of the TAC Defendants contend is improper, with authority. (Ryu Decl., ¶ 6, Ex. B.) On

June 19, 2026, Plaintiff's counsel asked instead for a 30-day extension and a meeting "in the next month," and did not respond to defense counsel's request for an answer by the following week. (Ryu Decl., ¶ 7.) That exchange does not support a continuance. Accordingly, the request to defer is denied.

II. Scope of Leave

Defendants ask the Court to strike six categories of matter from the TAC, each addressed below. (Mot. to Strike, at pp. 2-3.) Plaintiff argues that the TAC responds directly to the deficiencies the April 28, 2026 order identified and is within the scope of the leave granted, citing *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018 (*Harris*). (Opp. to Mot. to Strike, at pp. 3, 5-7.)

The April 28, 2026 order sustained the demurrer to the SAC's dissolution causes of action without leave to amend because Plaintiff lacks standing to seek dissolution under Corporations Code section 8510 or section 18410, sustained the demurrer to the remaining causes of action with leave, and stated that "Plaintiff does not have leave to add any additional claims or parties to the pleading." (Apr. 28, 2026 Minute Order, at pp. 3-5.) A pleading filed in disregard of that order may be stricken. (Code Civ. Proc., § 436, subd. (b).)

Here, two theories in the TAC are new. The first would hold Bushell personally liable under Corporations Code section 18615, subdivision (c), for executing contracts without authority, a claim that asks for a money judgment against Bushell herself. (TAC, ¶ 11(xv); Prayer, ¶ 11.) The second demands \$10 million in compensatory and punitive damages from Bushell and Yashar under Corporations Code section 18620 for tortious interference. (TAC, ¶ 32; Prayer, ¶ 12.) The SAC invoked neither section, and its prayer sought no money judgment against the individual defendants. (SAC, Prayer, ¶¶ 1-13.) Each theory is an additional claim, and the order permitted none.

Harris does not save them. There, the plaintiffs' original complaint contained no cause of action for unfair business practices, their first amended complaint added one, and the Court of Appeal held the demurrer to it properly sustained because the new cause of action "exceeded the scope of the court's order granting leave to amend the original complaint." (*Harris*, supra, 185 Cal.App.4th at pp. 1022-1023.) The measure Plaintiff takes from *Harris*, that a new claim is within leave where it "directly responds" to the reason the demurrer was sustained, is *Harris*'s description of *Patrick v. Alacer*

Corp. (2008) 167 Cal.App.4th 995, 1015 (Patrick). (Harris, supra, at p. 1023; Opp. to Mot. to Strike, at pp. 5-7.)

Patrick does not help Plaintiff either. There, the leave order did not state the scope of permitted amendment, the demurrer had been sustained because the plaintiff failed to allege standing as a beneficial shareholder, and the one new cause of action sought a declaration that she held the community property interest that would make her one. (Patrick, supra, 167 Cal.App.4th at pp. 1002, fn. 2, 1015.) The court allowed that cause of action because it supplied the very element the demurrer found missing, while noting that the plaintiff was not “free to add any cause of action under the sun.” (Id. at p. 1015.)

Here, the order stated its own scope in express terms, and the deficiencies it identified were the want of an actual controversy behind the entity-status theory and the want of any statutory basis for the reorganization, receivership, and reversal theories. (Apr. 28, 2026 Minute Order, at pp. 4-5.) A money judgment against Bushell under section 18615 and a \$10 million damages demand under section 18620 supply neither; they are liability theories the SAC never pleaded, and are the additional claims the order barred. The ground is not the sham-pleading doctrine Plaintiff argues against, but Code of Civil Procedure section 436, subdivision (b): matter not filed in conformity with an order of the court. (Opp. to Mot. to Strike, at pp. 6-7.) The Court therefore strikes the allegations and prayers for damages regarding these theories.

III. Dissolution Relief

Defendants ask the Court to strike every reference to dissolution or winding up, including Prayer paragraph 6. (Mot. to Strike, at p. 2.) Plaintiff argues that Prayer paragraph 6 is a conditional alternative remedy tethered to the reorganization claim (Panakosta Partners, LP v. Hammer Lane Management, LLC (2011) 199 Cal.App.4th 612), and that Corporations Code section 18410, subdivision (d), authorizes dissolution by court order where an association's operations have been discontinued. (Opp. to Mot. to Strike, at pp. 9-10; Opp. to Dem., at p. 11.)

Here, Plaintiff alleges no discontinuance. He alleges an association that retains counsel and a management company, enters contracts, levies special assessments, and conducts elections, however poorly. (TAC, ¶¶ 11(xiii), 11(xv),

11(xvii), 11(xxi).) An association alleged to be operating badly is not one alleged to have stopped operating. The remaining methods the section describes belong to the governing documents, the membership by majority vote, and the board, and Plaintiff is none of these. (Corp. Code, § 18410, subds. (a)-(c); TAC, ¶ 5.) Thus, Plaintiff may not obtain dissolution, and moving that relief to the prayer, or conditioning it on the failure of other relief, does not make it available. Accordingly, the Court strikes Prayer paragraph 6; the phrase “or winding up and dissolution” in Prayer paragraph 7; and the phrase “or in the alternative involuntary dissolution” in paragraph 7 of the TAC. In light of the ruling on the Demurrer below, the request to strike the dissolution references within the second through fifth causes of action is denied as moot.

IV. Reversal Theory

Defendants ask the Court to strike the theories added to the sixth cause of action under Civil Code section 4955 and the Corporations Code sections stricken above. (Mot. to Strike, at p. 3.) Plaintiff argues that the section 4955 citation is the statutory authority for the reversal claim the order permitted him to replead. (Opp. to Mot. to Strike, at p. 10.) Here, the April 28, 2026 order sustained the demurrer to the reversal cause of action because the SAC contained no specific allegations of “what laws or governing documents were violated,” and granted leave to amend it. (Apr. 28, 2026 Minute Order, at pp. 4-5.) Naming the statute the repleaded claim proceeds under is the amendment that ruling called for, and Defendants reply that their concern is with the damages and individual-liability theories pleaded alongside it. (Mot. to Strike Reply, at p. 4:3-11.) Accordingly, the Motion to Strike is denied as to the Civil Code section 4955 theory.

V. Non-Party Allegations

Defendants ask the Court to strike the subparagraphs accusing the Association’s management company and its counsel, neither a party, of insurance fraud, embezzlement, and improper billing. (Mot. to Strike, at p. 3; TAC, ¶¶ 11(xv)-(xix), (xxi).) Plaintiff argues that the allegations describe the contracts and expenditures the reversal claim asks the Court to undo. (Opp. to Mot. to Strike, at pp. 10-11.)

Here, the Court strikes two accusations: that the management company submitted false insurance claims in Plaintiff’s name to the Association’s carrier, and that payments made without board authorization “may constitute

fraud and embezzlement.” (TAC, ¶¶ 11(xvi), 11(xix).) The reversal claim turns on whether board action was taken outside a board meeting, not on what became of the money afterward. Thus, neither accusation is essential to that claim or pertinent to anything else the TAC pleads, and each targets a non-party with no occasion to respond. (Code Civ. Proc., § 431.10, subds. (b), (c).) The rest of the designated matter describes board action taken without a meeting, contracts and payments made without board approval, conduct of Bushell and Yashar, who are parties, and Unit 6’s status under the recorded declaration, all of which belongs to the sixth cause of action or the first. (TAC, ¶¶ 11(xv), (xvii)-(xix), (xxi); Prayer, ¶¶ 8, 9.)

VI. Fee Request

Defendants ask the Court to strike, from Prayer paragraph 15, the request for attorney fees incurred “including this Verified Second Amended Complaint.” (Mot. to Strike, at p. 3.) Plaintiff concedes that the reference is a clerical carryover and offers to correct it. (Opp. to Mot. to Strike, at p. 11; SAC, Prayer, ¶ 11.) The TAC superseded the SAC, and a fee request measured by a superseded pleading gives the Court nothing to apply. Accordingly, the Court strikes the phrase and leaves the fee request itself in place.

VII. Leave to Amend

Plaintiff asks that any matter found to exceed the leave granted be met with further leave to amend, because “[w]hen the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (Opp. to Mot. to Strike, at pp. 11-12; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.) In Vaccaro, the stricken pleading lacked counsel’s signature, an omission already cured. Here, the order did not authorize the matter itself, and leave to replead it would grant the leave that order withheld. Accordingly, the Motion to Strike is granted in part and denied in part, without leave to replead the stricken matters.

DEMURRER

I. Uncertainty

Defendants contend that the whole TAC is uncertain because it commingles theories, remedies, and accusations against non-parties. Plaintiff argues that

a demurrer for uncertainty lies only where the defendant cannot reasonably respond. (Opp. to Dem., at p. 12.) Here, each cause of action identifies the declaration it seeks and the statute under which it seeks it, and the factual allegations are grouped by subject across 21 subparagraphs. (TAC, ¶¶ 11, 17, 20, 23, 26, 29, 31.) Defendants can determine which allegations support which theory. Accordingly, the Demurrer on the ground of uncertainty is overruled.

II. Entity Status

Defendants contend that the first cause of action states no controversy because the Association's status as a nonprofit mutual benefit corporation or as an unincorporated association changes nothing between these parties. Plaintiff argues that Civil Code section 4805 speaks only to the association's powers, while the TAC puts in issue whether the recorded declaration and the affordable-housing covenant bind each unit, whether the Association was validly formed, and which statutory framework governs the remedies he seeks. (Opp. to Dem., at p. 9.)

The Court may declare rights and duties only "in cases of actual controversy relating to the legal rights and duties of the respective parties." (Code Civ. Proc., § 1060; Pittenger v. Home Sav. & Loan Assn. (1958) 166 Cal.App.2d 32, 36.) Civil Code section 4805 provides that an association, "regardless of whether the association is incorporated or unincorporated," may exercise the powers of a nonprofit mutual benefit corporation and the powers granted by Davis-Stirling, with two exceptions, a corporate seal and membership certificates, that are not in issue here. (Civ. Code, § 4805, subds. (a), (b).)

Here, nothing in the pleading depends on whether the Association is incorporated. The Association holds the same powers either way, and Plaintiff cannot obtain its dissolution in either form, as discussed above. The stricken theories under Corporations Code sections 18615 and 18620 would have applied only if the Association is unincorporated, but stricken matter cannot create the controversy the rest of the pleading must plead for itself.

Plaintiff alleges that a lender foreclosed on the developer during construction and sold the units in 1982 without binding all of them to the declaration and without properly forming the Association; that Unit 6 passed by a deed carrying no encumbrance to the recorded declaration while the other seven units passed subject to it; and that the 15% affordable-housing covenant

may never have attached and may no longer be operative. (TAC, ¶¶ 1, 7, 11(xxi), 14, Ex. 3.) Those allegations do not enlarge what the first cause of action asks the Court to declare. The declaration sought concerns “the entity status of the Association as an unincorporated association,” and the prayer recites the foreclosure, the unencumbered deed, and the covenant only as the reasons that status should be so declared. (TAC, ¶¶ 16, 17; Prayer, ¶ 1.) Taken as true, those allegations establish at most how the Association came to be unincorporated, and the entity determination settles no right or duty between these parties.

The covenant allegations also plead no ripened controversy, because the dispute is not concrete enough to permit a useful decision and withholding one works no imminent hardship. (*Stonehouse Homes LLC v. City of Sierra Madre*, supra, 167 Cal.App.4th at pp. 540-541.) Plaintiff pleads the covenant in the conditional, asking whether it “actually attached” and alleging that it “may effectively be inoperative,” and he does not allege that anyone has asserted it against him or that any right of his depends on it. (TAC, ¶¶ 1, 14; Prayer, ¶ 1.) Defendants reply that the covenant’s beneficiary is a necessary party, but joinder becomes a question only where a present controversy over the covenant exists, and Plaintiff pleads none. (Dem. Reply, at p. 3:21-27.)

Plaintiff’s reliance on *Market Lofts Community Assn. v. 9th Street Market Lofts, LLC* (2014) 222 Cal.App.4th 924 (*Market Lofts*) is misplaced. (Opp. to Dem., at pp. 2-3, 6-8.) There, the association claimed the parking rights a license agreement conferred, the developers contested that claim, and the association sought a declaration that a later sub-license was invalid to the extent of the conflict; each side asserted present rights under the instruments against the other. (*Market Lofts*, supra, 222 Cal.App.4th at pp. 927-928, 931-932.) The rule *Market Lofts* applies, that a complaint is sufficient if it “sets forth facts showing the existence of an actual controversy” directs a court not to test in advance the merits of the declaration; it says nothing about a pleading that identifies no right or duty in present dispute. (*Id.* at p. 931.) The passage holding that *Davis-Stirling* supplied no ground for demurrer answered a contention that the sub-license was presumptively enforceable as part of the CC&Rs (Covenants, Conditions, and Restrictions). (*Id.* at pp. 934-935.) Nor does the Court construe the covenant or any deed against Plaintiff, the step he argues *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97 forbids on demurrer. (Opp. to Dem., at pp. 6, 8.) The defect is that the declaration he asks for would settle nothing between these parties, and that he pleads no ripened dispute over the

covenant.

Accordingly, the Demurrer to the First Cause of Action is sustained.

III. Reorganization

Defendants contend that the second cause of action identifies no statutory or contractual basis entitling a single member to compel the reorganization of an association. Plaintiff argues that a member has statutory standing to enforce the governing documents, citing Civil Code section 5975 and *Ekstrom v. Marquesa at Monarch Beach Homeowners Assn.* (2008) 168 Cal.App.4th 1111, and that reorganization is a remedy ancillary to that relief. (Opp. to Dem., at pp. 9-10.)

Here, the second cause of action seeks a declaration under Code of Civil Procedure section 1060, and in the alternative an order under Corporations Code section 18410, involuntarily reorganizing the Association through new governing documents, conformed deeds, and a meeting at which every member is placed on the board with executive power. (TAC, ¶¶ 19, 20.) The reorganization is the whole content of the cause of action, not a remedy within a claim that has some other basis. Corporations Code section 18410 confers no authority to reorganize an association; it states the four methods by which one may be dissolved, none of which is open to Plaintiff, as discussed above. Civil Code section 5975 makes the declaration's covenants and restrictions enforceable equitable servitudes that "may be enforced by any owner of a separate interest or by the association, or by both." (Civ. Code, § 5975, subd. (a).) *Ekstrom* was such an action, to compel enforcement of a view protection provision. Plaintiff seeks nothing of that kind; he asks the Court to replace the governing documents, conform the deeds of eight owners, and seat every member on the board. A statute that makes the declaration enforceable as written is not authority to rewrite it. The Legislature prescribed what a member may do about the governance failures the TAC describes: sue to void an election, or sue for declaratory or equitable relief for an open-meeting violation. (Civ. Code, §§ 4955, subd. (a), 5145, subd. (a).) Neither remedy authorizes a court to rewrite an association's governing documents, reform its members' deeds, or constitute its board. "It is not the role of the courts to add statutory provisions the Legislature could have included, but did not." (*Artus v. Gramercy Towers Condominium Assn.* (2018) 19 Cal.App.5th 923, 945.)

Accordingly, the Demurrer to the Second Cause of Action is sustained.

IV. Receivership

Defendants contend that the third, fourth, and fifth causes of action identify no statutory basis for appointing a receiver, and that Code of Civil Procedure section 564 confers no substantive right to one. (Dem., at p. 7:3-6.) Plaintiff argues that a receivership is an ancillary, provisional remedy that attaches to his substantive claims, and that a demurrer cannot be sustained to a particular type of remedy. (Opp. to Dem., at pp. 10-11.)

The third cause of action asks the Court to appoint a receiver to carry out the reorganization, the fourth a receiver to implement a membership ratification of it, and the fifth a receiver to report to the membership on the loss of equity the members have suffered. (TAC, ¶¶ 22, 25, 28.) Each invokes Code of Civil Procedure section 564, which permits an appointment “in any case in which the court is empowered by law to appoint a receiver.” (Code Civ. Proc., § 564, subds. (a), (b)(9).) A receivership “is designed to be merely a provisional remedy” that “preserves the status quo of property while litigation is pending.” (Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 925.) Thus, the provision aids relief the Court can grant and creates none.

Here, no statute authorizes the reorganization these causes of action would have a receiver carry out, as discussed above. A receiver appointed to implement it would have nothing to implement, and a ratification meeting convened to approve it would have nothing to approve. The rule that a demurrer “cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy” presupposes a cause of action the remedy belongs to. (Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1047.) These causes of action seek a receiver in aid of a reorganization no statute authorizes, and nothing else. The fifth cause of action’s alternative request, an investigation into the members’ loss of equity to be presented at a meeting yet to be set, states no claim either; section 564 does not authorize a receiver to investigate, the loss of equity is the subject of no cause of action, and a request whose content and occasion await a future vote is unripe. (TAC, ¶ 28; Stonehouse Homes LLC v. City of Sierra Madre, supra, 167 Cal.App.4th at pp. 540-541.) The Court does not consider the decision these causes of action cite, which the TAC itself identifies as not reported. (TAC, ¶¶ 22, 25, 28; see Cal. Rules of Court, rule 8.1115(a).)

Accordingly, the Demurrer to the Third, Fourth, and Fifth Causes of Action is sustained.

V. Open Meeting Act

Defendants contend that the sixth cause of action remains conclusory, because the TAC identifies no election, no rule or governing-document provision that was violated, and no meeting at which board action was improperly taken. Plaintiff argues that the pleading's gravamen is the Association's failure to comply with its governing documents, not an election contest. (Opp. to Dem., at pp. 11-12.)

The sixth cause of action seeks a declaration under Civil Code section 4955 reversing board actions and contracts from 2019 forward on two grounds: failure to comply with the open meeting provisions of Davis-Stirling, and want of a lawful board of directors. (TAC, ¶ 31.) Section 4955, subdivision (a), authorizes a member to "bring a civil action for declaratory or equitable relief for a violation of this article by the association," and section 4910, subdivision (a), provides that "[t]he board shall not take action on any item of business outside of a board meeting."

Here, Plaintiff states a claim on the first ground. He alleges that Bushell and Yashar, the two persons he alleges have acted as the Association's directors, retained legal counsel and a management company "without having any conducted any required meetings under [Davis-Stirling] open meeting act." (TAC, ¶¶ 8, 9, 11(xiii).) Retaining counsel and a managing agent is an item of business within the board's authority. (Civ. Code, §§ 4090, 4155.) Action taken by those alleged to constitute the board, when no meeting was held, is action on an item of business outside a board meeting, which section 4955, subdivision (a), makes actionable by a member.

The second ground states no claim. Plaintiff alleges that the board is unlawful because its members were never elected, but he identifies no election, no provision of the election rules or the governing documents that any election violated, and no respect in which any election departed from what Davis-Stirling requires. (TAC, ¶¶ 8, 9, 11(xiv), 31.) That allegation is a conclusion, and Civil Code section 5145, the action a member brings to void an election, requires a showing Plaintiff does not make. (*Kong v. City of Hawaiian Gardens Redevelopment Agency*, *supra*, 108 Cal.App.4th at p. 1046.) However, a demurrer "cannot rightfully be sustained to part of a cause of

action” (id. at p. 1047), and the sixth cause of action states a claim on the open-meeting ground.

Accordingly, the Demurrer to the Sixth Cause of Action is overruled.

VI. Leave to Amend

Plaintiff asks, in the alternative, for leave to amend. (Opp. to Dem., at p. 13; Opp. to Mot. to Strike, at p. 12.) Leave must be granted where “there is any reasonable possibility that the defect can be cured by amendment,” and Plaintiff bears the burden of showing that possibility. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Blank v. Kirwan, supra, 39 Cal.3d at p. 318.)

Here, Plaintiff has not carried that burden. He has amended three times, and the April 28, 2026 order identified the TAC as his final opportunity. (Apr. 28, 2026 Minute Order, at p. 5.) The defects in the first five causes of action are not defects of pleading: no statute empowers the Court to reorganize an association at the instance of one member or to appoint a receiver to carry out a reorganization it cannot order, and no allegation can cure a want of legal authority. The first cause of action fails because the declaration it seeks would settle no right or duty between these parties. Plaintiff proposes no different pleading, identifies no fact he would add, and defends the TAC as filed.

Accordingly, the Court sustains the Demurrer to the first through fifth causes of action without leave to amend.

CONCLUSION

The Demurrer is sustained without leave to amend as to the first, second, third, fourth, and fifth causes of action and is overruled as to the sixth cause of action. The Motion to Strike is granted without leave to amend as to the following: in paragraph 7, the phrase “or in the alternative involuntary dissolution”; in paragraph 11, subparagraph (xv), the clause beginning “and Plaintiff now seeks to hold her personally liable”; paragraph 11, subparagraph (xvi), in its entirety; in paragraph 11, subparagraph (xix), the sentence beginning “Plaintiff believes that such actions”; paragraph 32; Prayer paragraphs 6, 11, and 12; in Prayer paragraph 7, the phrase “or winding up and dissolution”; and, in Prayer paragraph 15, the phrase “including this Verified

Second Amended Complaint.” The Motion to Strike is otherwise denied. Defendants have 30 days to answer.